



The International Protection of Geographical Indications: A Complex Bowl of Spaghetti Lacking the Flavour of a Collectively Defined and Controlled Product Specification?

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1 Historical Evolution of the International Landscape

For centuries, geographical place names have served not only as indicators of origin but also as valuable commercial assets, signalling quality and reputation associated with products such as Champagne, Parmigiano Reggiano, Darjeeling tea, Colombian coffee, Kobe beef, or Argan oil. The legal protection of such names began with the 1883 Paris Convention for the Protection of Industrial Property, which, though still in force today with 181 signatories, provides only limited safeguards. It prohibits misleading indications of source as acts of unfair competition but does not provide specific remedies in case of infringement. The Madrid Agreement for the Repression of False or Deceptive Indications of Source (1891), currently binding on 55 countries, introduced more concrete provisions, albeit still limited in scope.

A major evolution came in 1958 with the Lisbon Agreement for the Protection of Appellations of Origin and Their International Registration, inspired by early domestic experiences such as France's 1905 law on appellations of origin, enacted in the wake of the phylloxera crisis. The Lisbon Agreement defined appellations of origin (AOs) as “the geographical name of a country, region or locality, which serves to designate a product originating therein, the quality and characteristics of which are due exclusively or essentially to the geographical environment, including natural and human factors.” It established an international register administered by WIPO and provided a high level of protection against misuses.

Parallel to this, bilateral agreements emerged as another route for protecting geographical designations, whether by product-specific conventions (e.g., the 1951 Stresa Convention on cheese denominations) or by mutual recognition schemes.

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These offer varying levels of protection, contingent on the terms negotiated in each agreement, thus producing a fragmented framework.

Due to the narrow adoption of the Lisbon Agreement – only 29 countries had acceded by 2015 – and the inherent limitations of bilateral accords, a broader multilateral solution was sought. The integration of intellectual property rights into the WTO framework through the 1994 Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) brought about a new legal category: geographical indications (GIs). Unlike AOs, GIs under TRIPS are defined more flexibly, encompassing names that designate goods originating in a region where a given quality, reputation, or other characteristic is essentially attributable to that geographical origin. TRIPS grants a baseline level of protection for all GIs, with additional protection for wines and spirits. However, it failed to establish a multilateral registration system, thereby requiring right holders to seek protection country by country through what is known as the “direct application” procedure.

In the 2000s, the growing demand for GI protection prompted renewed interest in both bilateral trade agreements and the modernization of the Lisbon system. This led to the 2015 Geneva Act of the Lisbon Agreement, which incorporated the TRIPS definition of GIs and introduced greater flexibility regarding the means of protection at the domestic level, while maintaining an international register and high standards of protection. Since its adoption, over 70 members – including the European Union (EU) and OAPI – have joined, and more than 1100 GIs and AOs have been registered internationally under the system.

Today, the international legal architecture for GIs is highly sophisticated and uniquely complex among intellectual property rights. Ten years after the Geneva Act, 30 years after TRIPS, and two decades into intensive bilateral trade negotiations, this evolving system offers states a range of strategic options for protecting GIs internationally. For instance, Albania recently chose to protect its GI *Vaj Ulliri Valmi Elbasan* (olive oil) through the Lisbon System (published in the EU Official Journal on 21 March 2025), while Bosnia and Herzegovina opted for direct registration of *Livanjski Sir* (cheese) in the EU (16 December 2022). In another example, Vietnam’s GI *Nuoc Mam Phu Quoc* (fish sauce) is protected in the EU both via the EU–Vietnam Free Trade Agreement (1 August 2020) and through direct registration (26 August 2009). As of 2025, among the approximately 2,200 foreign GIs protected in the EU, around 85% are covered through agreements, 15% through direct registration, and one via the Lisbon system. While all three pathways follow a similar procedural structure – application, publication, opposition, registration – the substantive criteria for protection diverge significantly, raising critical questions about the coherence of the GI concept as originally developed in Europe.

2 Routes of Protection for Foreign GIs in the EU

2.1 Direct Registration with the EU

The EU's GI system was initially established in 1992 and has undergone several reforms, the latest being Regulation (EU) 2023/2411 on the protection of GIs for craft and industrial products, and Regulation (EU) 2024/1143, which consolidates the legal framework of Protected Denominations of Origin (PDO) and Protected Geographical Indications (PGI) for agricultural products, foodstuffs, wines, and spirits.

At the heart of the EU approach lies the concept of a detailed product specification drafted and applied by a producer group, alongside mandatory control mechanisms. The applicant must be a producer group or association, irrespective of legal form, predominantly composed of producers (Arts. 3, 4 and 9 of Regulation 2024/1143; Art. 8 of Regulation 2023/2411). The last reform further reinforces the role of producer groups, requiring them to operate in a transparent, democratic, and non-discriminatory manner and to be open to all eligible producers (Art. 45 of Regulation 2023/2411; Art. 32 of Regulation 2024/1143).

The product specification must include: the name, product description, geographical area, production method, proof of origin (traceability), the link to the geographical area, labelling rules (if any), and if need be sustainability practices (Arts. 49 and 9 of the respective regulations).

Compliance with the specification must be verified by an independent authority or accredited certification body prior to marketing (Art. 39 of Regulation 2024/1143; Arts. 52 and 53 of Regulation 2023/2411), with possible internal checks by the producer group as well (Art. 45 and 32 respectively).

The EU system grants extensive protection, including *ex officio* enforcement and the right to use EU quality symbols.

2.2 Protection via the Lisbon System

Under the Geneva Act, the applicant may be the beneficiaries of the AO/GI, a natural or legal person with standing under domestic law, or a competent authority acting on their behalf (Arts. 5.2 and 5.3; Rule 5(2)(a)). The Act does not, however, impose any requirement regarding representativeness or democratic functioning of the applicant. Nor does it require a product specification as detailed as in the EU system. Indeed, applications may include information on the quality, characteristics, or reputation of the good and its connection with the origin, but this remains optional (Rule 5(3)). While the Geneva Act provides strong legal protection, it does not entail the right to use the EU symbols.

2.3 Protection Through Trade Agreements

The EU has concluded 36 trade agreements containing GI chapters (e.g., with Vietnam, China, Japan, New Zealand, Canada, and the Mercosur countries), with several others under negotiation. These agreements typically provide for reciprocal

and indefinite protection of listed GIs, often without granting the right to use EU symbols.

Conditions for protection are generally aligned with the EU's definition of GIs, but there is no consistent requirement regarding the representativeness of the applicant. Product specifications tend to be abbreviated and control mechanisms are often minimal. For example, Art. 6.10(2) of the EU–Vietnam Agreement refers only briefly to specifications and controls.

3 Discussion

The comparative analysis of these protection routes invites reflection on the core features of the GI concept as developed in the EU. Both the Lisbon System and trade agreements lack any obligation to provide a detailed product specification or demonstrate collective and representative governance by the producer group. As a result, foreign GIs may find it procedurally easier to secure protection in the EU through the Lisbon System or trade agreements than via direct registration – despite the absence of the right to use EU logos (with the notable exception of the EU–China Agreement of 2020).

This raises fundamental questions: Are GIs merely another form of intellectual property, or are they a *sui generis* instrument combining IP protection with endogenous quality standards, the product specification developed and controlled by value chain actors? Is the function of a GI limited to protecting a name from misuse, or does it also imply representativeness, a rigorous specification, and control mechanisms that reinforce the link to the origin properly defined?

While the primary function of GIs is indeed to prevent misappropriation and counterfeiting, weakening their substantive foundations and in particular a robust product specification, changes following climate change and modernisation of techniques may undermine their broader socioeconomic objectives – such as rural development, the safeguarding of traditional knowledge, and the preservation of biodiversity.

To avoid the risk of sleeping GIs only being registered but not used in the market, it seems essential to encourage the incorporation of the key principles of success of GIs – collective governance, democratic representation, and robust control systems – into the Lisbon framework and trade agreements. Only then can the international GI landscape fully deliver on its promise as a multifunctional legal and socio-economic tool.

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